

2015 WL 6167315 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Luis SEPULVEDA, Joshua Rodriguez, Franklyn Gomez, Johnathan Colon and Christopher Salgado, Plaintiffs,
v.

CITY OF NEW YORK, New York City Police Department, New York City Police **Officer** Jerlina Rosario,
Shield 22152 of the Pbbx Command and New York City Police **Officers** John Doe, Defendants.

No. 0025501-2015.
October 5, 2015.

Summons

Law Offices of Jason A. Steinberger, LLC, 505 Eighth Avenue, Suite 701, New York, NY 10018, (646) 256-1007, for plaintiffs.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: October 5, 2015 New York, NY

VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint, alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Luis Sepulveda, (hereinafter referred to as "SEPULVEDA") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Joshua Rodriguez, (hereinafter referred to as "RODRIGUEZ") is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Franklyn Gomez (hereinafter referred to as "GOMEZ") is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, Plaintiff Johnathan Colon, (hereinafter referred to as "COLON") is a resident of Bronx County, State of New York.

5. That at all times hereinafter mentioned, Plaintiff Christopher Salgado, (hereinafter referred to as “SALGADO”) is a resident of Bronx County, State of New York.
6. That at all times hereinafter mentioned, the New York City Police **Officer** Jerlina Rosario, Shield 22152 of the PBBX Command, (hereinafter referred to as “ROSARIO”) were employed by the New York City Police Department.
7. That at all times hereinafter mentioned, the New York City Police **Officers** John Doe, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
8. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
9. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
10. On or about July 24, 2014 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
11. On or about May 18, 2015, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
12. That on or about July 10, 2015 at approximately 1:00AM in the vicinity of 1219 Wheeler Avenue, Bronx NY, Plaintiffs were walking down the street after having played basketball when ROSARIO and DOES stopped, handcuffed and arrested Plaintiffs.
13. That at no time did Plaintiffs possess anything of an illegal or unlawful nature.
14. That at no time did Plaintiffs engage in any unlawful or illegal behavior.
15. That after Plaintiffs were arrested, they were transported to the 43 police precinct.
16. That while Plaintiffs were inside of the 43 precinct, Plaintiffs were held in a holding cell occupied with other people for several hours.
17. That after several hours Plaintiffs were brought to Bronx County Central Booking located at 215 East 161 Street.
18. That while Plaintiffs were in Central Booking they were each subjected to harassment from other prisoners.
19. That on July 11, 2015 each of the Plaintiffs were arraigned in Bronx County Criminal Court and released on their own recognizance.
20. That on January 10, 2015, SEPULVEDA's case was dismissed.
21. That on July 5, 2015, RODRIGUEZ, GOMEZ, COLON and SALGADO had their cases dismissed.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

22. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 21, as if more fully stated herein at length.

23. That Defendants acted with actual malice toward Plaintiff SEPULVEDA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

24. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

25. That as a result of the actions by Defendants, Plaintiff SEPULVEDA was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

26. That as a result of the Defendants' actions, Plaintiff SEPULVEDA has been unable to sleep.

27. That as a result of the Defendants' actions, Plaintiff missed several days of work.

28. That as a result of the Defendants' actions Plaintiff SEPULVEDA sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

29. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 28, as if more fully stated herein at length.

30. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of the Plaintiff SEPULVEDA as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

31. Defendants having no lawful authority to arrest Plaintiff SEPULVEDA, did, nevertheless, unlawfully arrest Plaintiff SEPULVEDA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff SEPULVEDA is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. Defendants conspired to violate Plaintiff SEPULVEDA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff SEPULVEDA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. Plaintiff SEPULVEDA was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff SEPULVEDA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff SEPULVEDA by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff SEPULVEDA. Plaintiff SEPULVEDA is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. At all times pertinent hereto, ROSARIO and DOES were acting within the scope of their employment as **officers** of the New York City Police Department and City of New York.

38. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that ROSARIO and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

39. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police **officers** constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff SEPULVEDA. Plaintiff SEPULVEDA is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff SEPULVEDA.

43. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff SEPULVEDA.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43 as if more fully stated herein at length.

45. That Defendants acted with actual malice toward Plaintiff RODRIGUEZ and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff RODRIGUEZ.

46. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

47. That as a result of the actions by Defendants, Plaintiff RODRIGUEZ was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

48. That as a result of the Defendants' actions, Plaintiff RODRIGUEZ has been unable to sleep.

49. That as a result of the Defendants' actions, Plaintiff RODRIGUEZ missed several days of work.

50. That as a result of the Defendants' actions, Plaintiff RODRIGUEZ missed several days of school.

51. That as a result of the Defendants' actions Plaintiff RODRIGUEZ sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

52. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff RODRIGUEZ as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

54. Defendants having no lawful authority to arrest Plaintiff RODRIGUEZ, did, nevertheless, unlawfully arrest Plaintiff RODRIGUEZ with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff RODRIGUEZ is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

55. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 54, as if more fully stated herein at length.

56. Defendants conspired to violate Plaintiff RODRIGUEZ's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff RODRIGUEZ is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

57. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 56, as if more fully stated herein at length.

58. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff RODRIGUEZ to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff RODRIGUEZ by

Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff RODRIGUEZ. Plaintiff RODRIGUEZ is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

59. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 58, as if more fully stated herein at length.

60. At all times pertinent hereto, ROSARIO and DOES were acting within the scope of their employment as **officers** of the New York City Police Department and City of New York.

61. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that ROSARIO and DOES committed within the scope of their employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

62. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 61, as if more fully stated herein at length.

63. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police **officers** constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff RODRIGUEZ. Plaintiff RODRIGUEZ is thus entitled to compensatory exemplary damages.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

64. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 67, as if more fully stated herein at length.

65. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff RODRIGUEZ.

66. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff RODRIGUEZ.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS DEFENDANTS

67. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 70 as if more fully stated herein at length.

68. That Defendants acted with actual malice toward Plaintiff GOMEZ and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff GOMEZ.

69. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

70. That as a result of the actions by Defendants, Plaintiff GOMEZ was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

71. That as a result of the Defendants' actions, Plaintiff GOMEZ has been unable to sleep.

72. That as a result of the Defendants' actions, Plaintiff GOMEZ missed several days of work.

73. That as a result of the Defendants' actions, Plaintiff GOMEZ missed several days of school.

74. That as a result of the Defendants' actions Plaintiff GOMEZ sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

75. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 74, as if more fully stated herein at length.

76. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff GOMEZ as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

77. Defendants having no lawful authority to arrest Plaintiff GOMEZ, did, nevertheless, unlawfully arrest Plaintiff GOMEZ with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff GOMEZ is entitled to both compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

78. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 77, as if more fully stated herein at length.

79. Defendants conspired to violate Plaintiff GOMEZ's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff GOMEZ is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

80. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 79, as if more fully stated herein at length.

81. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff GOMEZ to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff GOMEZ by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff GOMEZ. Plaintiff GOMEZ is thus entitled to compensatory and exemplary damages.

**AS AND FOR A NINETEENTH CAUSE OF ACTION AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

82. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 83, as if more fully stated herein at length.

83. At all times pertinent hereto, ROSARIO and DOES were acting within the scope of their employment as **officers** of the New York City Police Department and City of New York.

84. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that ROSARIO and DOES committed within the scope of their employment.

**AS AND FOR A TWENTIETH CAUSE OF ACTION AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

85. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 84 as if more fully stated herein at length.

86. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police **officers** constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff GOMEZ. Plaintiff GOMEZ is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

87. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 86, as if more fully stated herein at length.

88. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff GOMEZ.

89. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff GOMEZ.

AS AND FOR AN TWENTY-SECOND CAUSE OF ACTION DEFENDANTS

90. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 89 as if more fully stated herein at length.

91. That Defendants acted with actual malice toward Plaintiff COLON and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff COLON.

92. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

93. That as a result of the actions by Defendants, Plaintiff COLON was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

94. That as a result of the Defendants' actions, Plaintiff COLON has been unable to sleep.

95. That as a result of the Defendants' actions, Plaintiff COLON was forced to miss multiple days of work.

96. That as a result of the Defendants' actions, Plaintiff COLON was forced to miss multiple days of school.

97. That as a result of the Defendants' actions Plaintiff COLON sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS

98. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 97, as if more fully stated herein at length.

99. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff COLON as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

100. Defendants having no lawful authority to arrest Plaintiff COLON, did, nevertheless, unlawfully arrest Plaintiff COLON with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff COLON is entitled to both compensatory and exemplary damages.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

101. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 100, as if more fully stated herein at length.

102. Defendants conspired to violate Plaintiff COLON's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff COLON is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION AGAINST DEFENDANTS

103. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 103, as if more fully stated herein at length.

104. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff COLON to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff COLON by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff COLON. Plaintiff COLON is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

105. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 105, as if more fully stated herein at length.

106. At all times pertinent hereto, ROSARIO and DOES were acting within the scope of their employment as **officers** of the New York City Police Department and City of New York.

107. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that ROAS ARIIO and DOES committed within the scope of their employment.

**AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

108. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 107, as if more fully stated herein at length.

109. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police **officers** constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff COLON. Plaintiff COLON is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

110. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 109, as if more fully stated herein at length.

111. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff COLON.

112. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff COLON.

AS AND FOR AN TWENTY-NINTH CAUSE OF ACTION DEFENDANTS

113. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 112 as if more fully stated herein at length.

114. That Defendants acted with actual malice toward Plaintiff SALGADO and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff SALGADO.

115. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

116. That as a result of the actions by Defendants, Plaintiff SALGADO was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

117. That as a result of the Defendants' actions, Plaintiff SALGADO has been unable to sleep.

118. That as a result of the Defendants' actions, Plaintiff SALGADO was forced to miss multiple days of work.

119. That as a result of the Defendants' actions, Plaintiff SALGADO was forced to miss multiple days of school.

120. That as a result of the Defendants' actions Plaintiff SALGADO sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A THIRTIETH CAUSE OF ACTION AGAINST DEFENDANTS

121. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 120, as if more fully stated herein at length.

122. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff SALGADO as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

123. Defendants having no lawful authority to arrest Plaintiff SALGADO, did, nevertheless, unlawfully arrest Plaintiff SALGADO with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff SALGADO is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRTY-FIRST CAUSE OF ACTION AGAINST DEFENDANTS

124. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 100, as if more fully stated herein at length.

125. Defendants conspired to violate Plaintiff SALGADO's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff SALGADO is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A THIRTY-SECOND CAUSE OF ACTION AGAINST DEFENDANTS

126. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 125, as if more fully stated herein at length.

127. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff SALGADO to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff SALGADO by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff SALGADO. Plaintiff SALGADO is thus entitled to compensatory and exemplary damages.

**AS AND FOR A THIRTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

128. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 127, as if more fully stated herein at length.

129. At all times pertinent hereto, ROSARIO and DOES were acting within the scope of their employment as **officers** of the New York City Police Department and City of New York.

130. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that ROASARIO and DOES committed within the scope of their employment.

**AS AND FOR A THIRTY-FOURTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

131. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 130, as if more fully stated herein at length.

132. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police **officers** constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff COLON. Plaintiff COLON is thus entitled to compensatory exemplary damages.

**AS AND FOR A THIRTY-FIFTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

133. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 132, as if more fully stated herein at length.

134. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff COLON.

135. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff COLON.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twentieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the twenty-second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the twenty-third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twenty-sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twenty-seventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the twenty-ninth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the thirtieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the thirty-first cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the thirty-second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the thirty-third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirty-fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the thirty-fifth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason. Steinberger, Esq.

Attorney for Plaintiffs

505 Eighth Avenue

Suite 701

New York, NY 10018

(646) 256-1007

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